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CASE #	CASE NAME	HEARING NAME
CVME2400907	SLAGER VS UNIVERSAL HEAL TH SERVICES OF RANCHO SPRINGS, INC.	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling: Motion for Summary Judgment is denied. Motion for Summary Adjudication is Denied.

Evidentiary Objections- The matters to which the parties objected were not material to the preparation of the analysis and recommendation on this motion. On that ground, all objections should be overruled. Objections not ruled upon by the trial court are presumed overruled and preserved for appellate review. (*See Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 532.)

Standard - “A defendant moving for summary judgment has the burden of showing that a cause of action lacks merit because one or more elements of the cause of action cannot be established or there is a complete defense to that cause of action.” (*Jones v. Wachovia Bank* (2014) 230 Cal.App.4th 935, 945; Code Civ. Proc., §437c, subd. (p)(2).) A cause of action “cannot be established” if the undisputed facts presented by defendant prove the contrary of plaintiff’s allegations as a matter of law. (*Brantly v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597.) Defendant can also show that a cause of action cannot be established by presenting evidence that plaintiff “does not possess and cannot reasonably obtain, needed evidence.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 866.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at 850.) “Once the defendant...has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists....” (Code Civ. Proc., §437c(p)(2).) “Only after the moving defendant meets its initial burden does the burden shift to the plaintiff to demonstrate the existence of a triable issue.” (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 840; Code Civ. Proc., §437c(p)(2).)

Defendant’s contention that the action sounds in professional negligence fails

Defendant contends that the instant action, despite it being presented as an action for premises liability, sounds in professional negligence. Hence, the Court is being asked to resolve the legal question as to what standard of duty should apply to this case. “[W]hether the cause of action is denominated ‘ordinary’ or ‘professional’ negligence, or both, ultimately only a single standard can obtain under any given set of facts and any distinction is immaterial to resolving a motion for summary judgment.” (*Flowers v. Torrance Memorial Hosp. Med. Center* (1994) 8 Cal.4th 992, 1000.)

The decisional case on this question is *Flores v. Presbyterian Intercommunity Hospital* (2016) 63 Ca.4th 75, which Defendant has cited in its motion. There, the court considered whether a patient’s action for alleged injuries from a malfunctioned latch on the rail on her hospital bed would be considered medical malpractice as opposed to ordinary negligence founded on premises liability, for purpose of determining whether the case falls under the statute of limitation of Medial Injury Compensation Reform Act (MICRA). The court noted that “whether negligence in maintaining hospital equipment or

premises qualifies as professional negligence depends on the nature of the relationship between the equipment or premises in question and the provision of medical care to the plaintiff,” and based thereon held that the negligence in the case at bar occurred “in the rendering of professional services” and therefore was professional negligence. (*Id.* at 89.) The court noted that the injuries resulted from the hospital’s alleged negligence in the use or maintenance of equipment that was “integrally related to her medical diagnosis and treatment.” (*Ibid.*) The determining factor was that, following a medical assessment of plaintiff’s condition, a doctor had made a “medical decision” to order that the rails on the plaintiff’s bed be raised, and plaintiff was thereafter injured when the siderail collapsed when she grasped the rail to exit the bed, causing her to fall to the floor. (*Ibid.*)

Defendant argues that the same reasoning should apply here to conclude that this action sounds in professional negligence because the Complaint is entirely predicated upon the medical treatment rendered at Defendant’s hospital while Plaintiff was a patient. Defendant argues that the declaration of a registered nurse, Davina Leary, demonstrates that “the care and treatment provided by the nurses and staff at Inland Valley Medical Center met the standard of care.” (Defendant’s Separate Statement of Undisputed Facts No. 18.) Defendant asserts that Plaintiff presented to the hospital with dizziness and weakness, and a nurse was required to assess her need for assistance, her “fall risk,” and assist her based on the nurse’s judgment. Defendant asserts that the “nursing assessment” of Plaintiff was what led to her sitting on the toilet without assistance, which was “integrally related to her medical diagnosis and treatment.” Defendant’s argument is unpersuasive.

As the *Flores* court has noted, professional duty of care is implicated where the hospital’s use of the equipment was “necessary or otherwise integrally related to the medical treatment and diagnosis of the patient.” (*Id.* at 88-89.) The court drew a critical distinction that the plaintiff’s claim is one of professional negligence “if the act or omission that led to the plaintiff’s injuries was negligence in the maintenance of equipment that, under the prevailing standard of care, was reasonably required to treat or accommodate a physical or mental condition of the patient....,” as opposed to “negligence in the maintenance of equipment and premises that are merely convenient for, or incidental to, the provision of medical care to a patient.” (*Ibid.*)

Here, Plaintiff alleges that she was injured as a result of the failure to maintain the toilet in the in-patient restroom. There is nothing alleged in the Complaint to suggest that the use of the toilet was reasonably required to treat or accommodate Plaintiff’s condition, and not merely convenient for, or incidental to, the care she received. Defendant, by shifting the focus on the absence of nurse assistance as the cause of Plaintiff’s injury, is rewriting the Complaint. *Flores* court noted: “[e]ven those parts of a hospital dedicated primarily to patient care typically contain numerous items of furniture and equipment – tables, televisions, toilets, and so on – that are provided primarily for the comfort and convenience of patients and visitors, but generally play no part in the patient’s medical diagnosis or treatment.” (*Id.* at 89.)

In reply, Defendant cites *Gutierrez v. Tostado* (2025) 18 Cal.5th 222, contending that the Supreme Court “reviewed and clarified its opinion in *Flores*.” (Reply, 4:11-12.) It did no such thing – at least not in any respect that helps Defendant here. Defendant’s

reliance on *Gutierrez* does not distinguish *Flores*. The passage Defendant quotes — that a professional negligence claim "derives from professional obligations that are distinct from the duty to exercise ordinary care that is owed to the public generally" (*Id.* at 237-238) recites the general professional-vs-ordinary-negligence framework that *Gutierrez* itself drew from prior cases, including *Flores*, and does not disturb *Flores*'s equipment-vs-treatment test. Indeed, *Gutierrez* expressly reaffirmed *Flores*'s example that "if a chair in a waiting room collapses, injuring the person sitting in it, the hospital's duty with respect to that chair is no different . . . from that of any other home or business," and MICRA's statute of limitations does "not apply to a suit arising out of such an injury." (*Id.* at 234.) *Gutierrez* itself involved a very different fact pattern — an injured motorist rear-ended by an ambulance transporting an unrelated patient — and the Court held MICRA did not apply because the ambulance driver's duty was one "owed simply by virtue of being a driver," not "by virtue of being a health care provider." (*Id.* at 240.) *Gutierrez* did instruct that "there must be a nexus between the provision of medical care and the resulting injury" for MICRA to apply, (*Id.* at 235) but that requirement is not met here: Plaintiff has pleaded the defective toilet seat — equipment provided for the comfort and convenience of patients — as the proximate cause of her fall, and *Gutierrez* is clear that MICRA classification "depend[s] on the facts alleged in the complaint," not the defendant's preferred recharacterization. (*Id.* at 244.) Based on the foregoing, the action does not sound in professional negligence and the proper standard of care on which to determine liability should be based on ordinary negligence.

Defendant has not present evidence to meet its initial burden to show Plaintiff's action has no merit or there is a complete defense - In California, premises liability is based on general principles of negligence and is controlled both by statute and case law. (*Rowland v. Christian* (1968) 69 Cal.2d 108, superseded by statute as stated in *Calvillo-Silva v. Home Grocery* (1998) 19 Cal.4th 714.) The general duty of reasonable care provides that every person "is responsible, not only for the results of his or her willful acts, but also for any injury occasioned to another by his or her lack of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by lack of ordinary care, brought the injury on himself or herself." (Civ. Code., §1714, subd. (a).)

As in any other negligence action, the injured person must establish the following: (1) the existence of a duty on the part of the defendant to use due care; (2) a breach of this legal duty; and (3) the breach as the proximate or legal cause of the resulting injury. (*U.S. Liab. Ins. Co. v. Haidinger-Hayes, Inc.* (1970) 1 Cal.3d 586.) "[T]he threshold question in an action for negligence is whether the defendant owed the plaintiff a duty to use care.... [Citation.]" (*Summit Financial Holdings, Ltd. v. Continental Lawyers Title Co.* (2002) 27 Cal.4th 705, 715.) "Absent a legal duty, any injury is an injury without actionable wrong." (*Romero v. Superior Court* (2001) 89 Cal.App.4th 1068, 1078.) "Duty, being a question of law, is particularly amenable to resolution by summary judgment...." (*Ibid.*)

"It is well settled that landowners owe a duty to tenants and invitees to maintain their premises in a reasonably safe condition." [Citation.] (*Lopez v. Baca* (2002) 98 Cal.App.4th 1008, 1015.) "[A] landowner must exercise care by making reasonable inspections of the premises to ascertain whether any dangerous conditions exist on the

property. [Citation.] If a dangerous condition does exist, the landowner must, ‘ “use the care required of a reasonably prudent [person] acting under the same circumstances.” ’ [Citations.] Failure to do so constitutes a breach of duty of care.” (*Jones v. Awad* (2019) 39 Cal.App.5th 1200, 1208.) However, landowners are not insurers of the safety. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205.) Thus, liability cannot be imposed unless there is evidence that the owner had (1) actual knowledge of the dangerous condition or (2) have been able to discover the dangerous condition by the exercise of ordinary care (constructive knowledge), which if known to him, would realize the condition posed an unreasonable risk to the customers on premises. (*Id.* at 1206.)

Here, Defendant has not properly addressed the proper standard of care in light of the general principles of premises liability. Defendant argues that Plaintiff cannot demonstrate that Defendant had actual or constructive knowledge of a dangerous condition on its premises, but it presents no evidence in support of this contention. On this issue, the separate statement of material facts submitted by Defendant points to the same evidence submitted in support of the theory that Defendant was not professionally negligent. Defendant argues that Plaintiff has the burden of proving whether the owner of the property had notice, or knew, of the dangerous condition and that there is no evidence to support such a claim. However, Defendant, as the moving party, bears the initial burden to demonstrate that Plaintiff has no case. Defendant may also show that a cause of action cannot be established by presenting evidence that plaintiff “does not possess and cannot reasonably obtain, needed evidence.” (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 866.) Here, however, Defendant must still present evidence.

Motion for summary adjudication is denied on the following issues:

(A) Plaintiff’s claims sound in professional negligence;

(B) the care and treatment provided at IVH complied with the standard of care; and

(C) the facts do not support a cause of action for premises liability as Plaintiff cannot establish that Defendant had actual or constructive notice of a dangerous condition present on the premises. Here, Issues (A) and (B) are not proper subject of summary adjudication as the statute provides that “[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., §437c(f)(1); *Maria D. v. Westec Residential Sec., Inc.* (2000) 85 Cal.App.4th 125, 133.) Moreover, as set forth above, Defendant cannot prevail on the Issue (C) because it has failed to meet its initial burden of production of demonstrating Plaintiff’s cause of action for premises liability has no merit or that a complete defense exists.